25STCV20094 25STCV20094

County: los-angeles

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Case Number: 25STCV20094 Hearing Date: July 14, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

MARITZA

FONSECA,

Plaintiff,

vs.

GENERAL

MOTORS, LLC, et al.,

Defendants.

Case No.:

25STCV20094

Hearing

Date:

July 14, 2026

[TENTATIVE]

ORDER OVERRULING DEMURRER

I. BACKGROUND

On June 30, 2025, plaintiff Martin Fonseca ("Plaintiff") filed a complaint against defendant General Motors, LLC ("Defendant") and DOES 1 through 10, inclusive.

On November 6, 2025, Defendant filed a demurrer to the complaint, which was set for hearing on February 10, 2026.

Prior to the hearing on the demurrer, on January 28, 2026, Plaintiff filed the operative first amended complaint ("FAC") against Defendant and DOES 1 through 10, inclusive, alleging causes of action for: (1) Violation of Subdivision (D) of Civil Code section 1793.2; (2) Violation of Subdivision (B) of Civil Code section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code section 1793.2; (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement—Concealment. This action arises from the sale and purchase of an allegedly defective 2019 GMC Terrain (the "Subject Vehicle"). (FAC, ¶ 6.)

On March 6, 2026, Defendant filed a demurrer to the FAC. On June 30, 2026, Plaintiff filed an opposition. On July 6, 2026, Defendant filed a reply.

II. LEGAL STANDARD

Code of Civil Procedure[1] section 430.10 states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, uncertain includes ambiguous and unintelligible; and (g) in an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

"[W]hile a statute of limitations normally sets the time within which proceedings must be commenced once a cause of action accrues, the statute of repose limits the time within which an action may be brought and is not related to accrual. Indeed, 'the injury need not have occurred, much less have been discovered. Unlike an ordinary statute of limitations which begins running upon accrual of the claim, [the] period contained in a statute of repose begins when a specific event occurs, regardless of whether a cause of action has accrued or whether any injury has resulted.' [Citation.] A statute of repose thus is harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded. [Citation.]" (Giest v. Sequoia Ventures, Inc. (2000) 83 Cal.App.4th 300, 305.)

III. DISCUSSION

A.
First
through Third Causes of Action: Song Beverly Act

Defendant
demurs to the first through third causes of action under the Song-Beverly Act arguing they are time-barred by the statute of limitations and statute of repose. In opposition, Plaintiff argues that Code of Civil Procedure section 871.21 should not apply in this case because retroactive application is a violation of due process, the statute of limitations does not apply to inadequate literature/parts claims, and the action was filed prior to July 1, 2025.

1.
Retrospective
Application

"An
action¿covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty."¿ (Code Civ. Proc., § 871.21, subd. (a).)¿ Notwithstanding that deadline, "an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle."¿ (Code Civ. Proc., § 871.21, subd. (b).)¿

Applying
the statute retrospectively would create a due process issue. "[W]here the change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time¿permitted¿for the party affected to avail himself of his remedy before the statute takes effect. If the statute¿operates¿immediately¿to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party." (Rosefield Packing Co. v. Superior Court (1935) 4 Cal.2d 120, 122-123.) Moreover, there is a presumption against retroactive application unless there is express language or a clear and unavoidable implication¿that the Legislature intended

retroactive application. (Quarry v. Doe I¿(2012) 53 Cal.4th 945, 955.)¿¿

Here,
Defendant argues the statute of repose began to run on October 2, 2018, when Plaintiff entered into a warranty contract for the Subject Vehicle. (FAC ¶ 6.) Six years from that date would be October 2, 2024. This action being filed on June 30, 2025, Defendant argues, makes the action untimely. As of January 1, 2025, there was no time left for Plaintiff to bring this action under section 871.20, subdivision (b), thus applying that section retroactively would violate Plaintiff's due process rights. Moreover, given the presumption against retroactive legislation and there being no clear¿indication¿that the Legislature intended retroactivity, the Court declines retroactive application.

Therefore,
Plaintiff's first through third causes of action are not time-barred by the statute of repose.

2.
Statute
of Limitations

California
courts have consistently held that claims under the¿Song-Beverly¿Act are governed by the four-year limitations period¿set forth in¿California Commercial Code section 2725.¿(Krieger v. Nick Alexander Imports, Inc.¿(1991)¿234 Cal.App.3d 205;¿Code Civ.¿Proc. §¿1790.) This statute provides that "an action for breach of any contract for sale must be commenced within four years after the cause of action has accrued."¿(Com.¿Code § 2725.)¿

"Where
a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered."¿(Com. Code, § 2725.)¿¿

Here,
the Complaint alleges Plaintiff discovered Defendant's wrongful conduct "shortly before the filing of the complaint," which was on June 30, 2025. (FAC

¶ 29.) It does not “clearly and¿affirmatively appear on the face of the complaint that the action is barred by the statute of limitations.” (E-Fab, Inc. v. Accountants, Inc. Services¿(2007) 153 Cal.App.4th¿1308, 1326.)¿ Therefore, Plaintiff’s first through third causes of action are not time-barred by the statute of limitations.

Accordingly, Defendant’s demurrer to the first through third causes of action is OVERRULED.

B.
Fourth Cause of Action: Breach of Implied Warranty of Merchantability

Defendant demurs to Plaintiff’s fourth cause of action arguing it is time-barred by the statute of limitations.

“The statute of limitations for breaches of the implied warranty of merchantability is four years.” (Montoya v. Ford Motor Co. (2020) 46 Cal.App.5th 493, 495.) A cause of action for breach of warranty occurs when the “tender of delivery is made, except where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Comm. Code section 2725, subd. (2).) As an implied warranty cannot explicitly extend to future performance of goods, the statute of limitation always runs from tender of delivery. (Cardinal Health 301, Inc. v. Tyco Elecs. Corp. (2008) 169 Cal.App.4th 116, 134.)

Plaintiff alleges the implied warranty accompanied the sale of the Subject Vehicle. (FAC ¶ 46.) Therefore, the point of accrual runs from the delivery of the vehicle. (Comm. Code section 2725, subd. (2).) Plaintiff does not allege when the Subject Vehicle was delivered. Plaintiff’s lack of alleged dates of delivery does not provide a basis for demurrer. The running of the statute must appear “clearly and affirmatively” from the face of the complaint; it is not enough that the complaint might be time-barred. (Committee for Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal. App. 4th 32, 42.) Therefore, based on the FAC’s allegations, the Court cannot conclude that Plaintiff’s fourth cause of action is time-barred.

Accordingly, Defendant’s demurrer to the fourth cause of action is OVERRULED.

C.
Fifth Cause of Action: Fraudulent Inducement – Concealment

Defendant demurs to Plaintiff’s fifth cause of action arguing it is time-barred and Plaintiff fails to allege a transactional relationship giving rise to a duty to disclose.

1.
Statute of Limitations

Under Code of Civ. Proc. section 338, subd. (d), an action based in fraud has a three-year statute of limitations accruing from “the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” A plaintiff must exercise reasonable diligence in discovering alleged fraud. (Seelenfreund v. Terminix of Northern California, Inc. (1978) 84 Cal.App.3d 133, 136.)

Plaintiff alleges he entered into the warranty contract on October 2, 2018. (FAC ¶ 6.) However, Plaintiff could not have reasonably discovered any alleged fraud prior to delivery of the Subject Vehicle. Plaintiff does not allege when the Subject Vehicle was delivered. Plaintiff alleges he discovered Defendant’s alleged wrongful conduct “shortly before the filing of the complaint,” which was on June 30, 2025. (FAC ¶ 29.) Therefore, Defendant’s argument that the FAC provides on its face a basis for demurrer on statute of limitations grounds is incorrect.

2. Duty to Disclose

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.)

Nondisclosure or concealment may constitute actionable fraud in four circumstances: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; or (4) when the defendant makes partial representations but also suppresses some material fact.” (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.) A duty to disclose may also arise when a defendant possesses or exerts control over material facts not readily available to the plaintiff. (Jones v. ConocoPhillips Co. (2011) 198 Cal.App.4th 1198, 1199.)

Defendant claims they had no duty to disclose because they had no fiduciary relationship with Plaintiff. Ordinarily, a duty to disclose absent a fiduciary relationship “presupposes the existence of [a] relationship between the plaintiff and defendant in which a duty to disclose can arise.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 311.) However, a vendor has a duty to disclose material facts “not only to immediate purchasers, but also to subsequent purchasers when the vendor has reason to expect that the item will be resold.” (OCM Principle Opportunities Fund v. CIBC World Markets Corp. (2007) 157 Cal.App.4th 835, 859-860.)
The duty to disclose to subsequent purchasers is limited: the plaintiff must show that the seller had special “reason to expect” that the fraud will be passed onto subsequent purchasers. (Geernaert v. Mitchell (2007) 31 Cal.App.4th 601, 607-608.) Mere foreseeability is insufficient. (Id. [citing Restatement (Second) of Torts § 305, cmt. d (1977)].) In determining whether the seller had “reason to expect” that the fraud will be passed onto subsequent purchasers, courts generally consider two factors: “(1) the extent of the seller’s knowledge of resale to a particular person or class of persons and (2) the likelihood that the particular misrepresentation (or concealment) would be passed on to them.” (Id. at 608.)

Here, the FAC alleges Defendant manufactured and/or distributed the Subject Vehicle, which Plaintiff purchased from an authorized dealer. (FAC ¶¶ 6, 8.) In addition, “Defendant GM had superior and exclusive knowledge of the Engine Defect and knew or should have known that the Engine

Defect was not known or reasonably discoverable by Plaintiff before Plaintiff purchased the Subject Vehicle.” (FAC ¶ 61.) The FAC also alleges Defendant did not instruct dealerships to disclose defects to drivers or potential purchasers. (FAC ¶ 67.) Plaintiffs sufficiently allege facts showing Defendant had a reasonable expectation the fraud would be passed to subsequent purchasets. The pleadings have adequately pled Toyota’s duty of disclosure. Plaintiffs’ FAC adequately pleads facts to support a cause of action for fraudulent inducement – concealment.

Therefore, Defendant’s demurrer to the fifth cause of action is OVERRULED.

IV. CONCLUSION

Defendant
General Motor’s demurrer to Plaintiffs’ First Amended Complaint is OVERRULED.

Defendant is ordered to give notice.

DATED:
July 14, 2026

____

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

• If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line “SUBMIT” followed by the case number. The body of the email must include the hearing date and time, counsel’s contact information, and the identity of the party submitting.

• Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

• If the parties neither submit nor appear at
hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.